

23VECV02767 23VECV02767

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-04

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Case Number: 23VECV02767 Hearing Date: September 4, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

SOPHIA OLGA
MASLAKOVA, an individual,

Plaintiff,

vs.

SPI COLLINS COURT LLC, a limited
liability company; WARNER VILLA CO., a business organization, form unknown;
FPI MANAGEMENT, INC., a corporation; CHRISTIAN BENSON, an individual; HERTZ
VEHICLES LLC, a limited liability company; LYFT, INC., a corporation; WILMA
Z. GOLDMAN, an individual; and DOES 1-100, inclusive,

Defendants.

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CASE NO: 23VECV02767

[TENTATIVE] RULING RE: PLAINTIFF'S

MOTION FOR RECONSIDERATION OF THE COURT'S ORDER GRANTING DEFENDANT'S MOTION TO
TAX COSTS

Dept. U

8:30 a.m.

September 4, 2026

A.

BACKGROUND

This case is a personal
injury action arising from two separate incidents: a slip and fall at an
apartment complex on July 31, 2022, and a subsequent motor vehicle accident in
which Plaintiff was a Lyft passenger on April 7, 2023.

On June 26, 2023,

Plaintiff Sophia Olga Maslakova ("Plaintiff") filed her complaint against
Defendants SPI Collins Court, LLC ("SPI"); Warner Villa Co. ("Warner"); FPI

Management, Inc. (“FPI”); Christian Benson (“Benson”); Hertz Vehicles LLC (“Hertz”); Lyft, Inc. (“Lyft”); and Wilma Z. Goldman (“Goldman”), alleging: (1) general negligence against SPI, Warner, and FPI; (2) premises liability against SPI, Warner, and FPI; (3) motor vehicle negligence against Benson, Hertz, Lyft, and Goldman; and (4) general negligence against Benson, Hertz, Lyft, and Goldman.

On December 1, 2023, Plaintiff filed a form amendment, naming 5807 Topanga LLC (“Topanga”) as DOE #1 in her complaint.

On December 26, 2023, Cross-Complainant Benson filed his cross-complaint against Cross-Defendant Goldman, seeking/alleging: (1) total equitable indemnity; and (2) comparative indemnity and contribution.

On June 3, 2024, Cross-Complainant Hertz filed its cross-complaint against Cross-Defendants FPI, Goldman, and Topanga, seeking/alleging: (1) indemnification; (2) apportionment of fault; and (3) declaratory relief.

On February 5, 2025, Plaintiff dismissed Hertz as a defendant from the complaint.

On August 8, 2025, the Court granted Plaintiff’s attorneys’ motion to be relieved as counsel. As of that date, Plaintiff has been proceeding as a self-represented litigant.¹

On November 24, 2025, Benson filed his form amendments naming FPI as ROE #1 and Topanga as ROE #2 in his cross-complaint.

On January 12, 2026, the Court granted Benson leave to file a first amended cross-complaint, after which Benson filed his first amended cross-complaint (the “FACC”) against Goldman, FPI, and Topanga, seeking/alleging: (1) total equitable indemnity; and (2) comparative indemnity and contribution.

On January 13, 2026, the Court conducted a mandatory settlement conference off the record. The case did not settle.

On January 30, 2026,
Goldman filed her answer to Benson's FACC.

On March 9, 2026, the
Court denied FPI and Topanga's motion to enforce a settlement previously
entered with Plaintiff.

On April 23, 2026, the
Court held a Final Status Conference and granted Lyft's motion to bifurcate the
trial in this matter.

On April 27, 2026, a jury
trial commenced.

On May 6, 2026, the jury returned a verdict, and
the Court entered judgment against FPI and Topanga in favor of Plaintiff in the
total amount of \$96,250.00. The Court
also entered judgment against Plaintiff in favor of Benson, Goldman, and
Lyft.

On July 10, 2026, the Court denied in part
Plaintiff's motion to tax costs from Goldman's memorandum of costs.

On July 16, 2026, Plaintiff filed a Supplemental
Declaration Regarding Defendant Wilma Z. Goldman's Claimed CCP § 998
Offers. The next day, Plaintiff filed a
Second Supplemental Declaration Regarding Corrected Exhibit A.

On July 20, 2026, at the hearing on Plaintiff's
motion to tax costs, the Court deemed the supplemental declarations as a motion
for reconsideration of this Court's July 10, 2026, ruling on Plaintiff's motion
to tax Goldman's costs.

On July 24, 2026, Plaintiff filed a Memorandum of
Points and Authorities in Support of Motion to Tax Costs and Request to Strike
Defendant Wilma Z. Goldman's Claimed CCP § 998 Enhanced Costs.

On August 14, 2026, Goldman filed an opposition.

B.

RULING

The motion is denied.

C. LEGAL

STANDARD

“When

an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008 (a).)

D.

DISCUSSION

Plaintiff

moves for reconsideration of this Court’s July 10, 2026, ruling on Plaintiff’s motion to tax Goldman’s costs.

Plaintiff contends new

evidence exists that warrants reconsideration. Plaintiff attests that, after the July 10 hearing, she conducted a further review of her litigation records and discovered two emails: the first from October 20, 2025, transmitting a purported section 998 offer, and the second from November 10, 2025, stating the service address of Plaintiff’s offer was invalid. (Maslakova Supp. Decl., ¶¶ 12-16.) Plaintiff declares she did not previously locate these documents because Plaintiff was not aware that Defendant would rely upon disputed section 998 offers during the July 10, 2026, hearing. (Maslakova Supp. Decl., ¶ 17.)

Goldman first argues

Plaintiff’s motion is procedurally defective. (Opp., p. 3.) Next, Goldman argues Plaintiff could have discovered the “new” evidence had she exercised due diligence. (Opp., p. 5.) Goldman further argues Plaintiff’s newly

discovered evidence has nothing to do with the 998 offer and therefore does not constitute new or different facts under Code of Civil Procedure section 1008. (Opp., p. 6.)

As a preliminary matter, the Court is unpersuaded by Goldman's argument that Plaintiff's motion is procedurally defective because she did not file or serve a notice of motion but rather filed supplemental declarations and a memorandum of points and authorities. (Opp., p. 3.) The Court construed the supplemental declarations as a motion for reconsideration. The Court therefore reviews the deemed motion on its merits.

The Court finds Plaintiff has not shown that the evidence is new or that she acted with reasonable diligence. A party seeking reconsideration must show: (1) evidence of new or different facts that exist, and (2) the party has a satisfactory explanation for failing to produce such evidence at an earlier time. (Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342.) Plaintiff's new evidence consists of the October 20, 2025, and November 10, 2025, emails. These emails predate the July 10 hearing by approximately eight months and were in Plaintiff's possession. Thus, the evidence on which Plaintiff bases her motion is not new or different within the meaning of Code of Civil Procedure section 1008. The section 1008 burden requires a showing that the information could not, with reasonable diligence, have been discovered and produced earlier. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.)

Plaintiff's explanation does not satisfy the diligence standard. Plaintiff declares she timely filed her Memorandum of Costs and reserved the July 10, 2026, hearing date, but the hearing focused primarily on Defendant's request for costs after the Court stated it was unaware of Plaintiff's filing. (Maslakova Supp. Decl., ¶ 25.) Plaintiff contends this left her with no opportunity to investigate evidence concerning Defendant's claimed section 998 entitlement. (Ibid.) However, Plaintiff was on notice, before the July 10 hearing that the April 25, 2024, offer was the operative basis for Goldman's enhanced cost, as Goldman expressly asserted her entitlement to expert costs in her opposition to the motion to tax costs. (Paz Decl., ¶ 6, Ex. 2.)

Plaintiff

has not provided a sufficient diligence explanation under section 1008. Accordingly, Plaintiff's motion for reconsideration is denied on this ground.

Next,

even if Plaintiff had met the prerequisites for reconsideration under section 1008, Plaintiff's proffered evidence is immaterial to the basis for the Court's ruling on Goldman's motion to tax costs.

Neither email bears on the April 25, 2024, section 998 offer. The October 20 email concerns a later, separate, proposal, and the November 10 email referred to the service address for Plaintiff's demand, not Goldman's April 25, 2024, offer.

Finally,

Plaintiff requests in the alternative, that if the Court determines that factual issues remain regarding the validity, service, or enforceability of Defendant's alleged CCP §998 offers, the Court set an evidentiary hearing before awarding enhanced costs. Plaintiff's request is denied, given the failure to meet the section 1008 threshold.

D. CONCLUSION

Plaintiff Sophia Olga Maslakova's motion for reconsideration is DENIED.

The Clerk is ORDERED
to give notice.

DATED: September 4, 2026

Lee

S. Arian

Judge
of the Superior Court